

Establishing Likely Eligibility for a Disabled Facilities Grant



1. Using this Procedure

This procedure should be used by an Occupational Therapy practitioner ahead of making a Disabled Facilities Grant application for a major adaptation, to establish whether or not a person's needs are likely to be eligible needs under the Housing Grant, Construction and Regeneration Act 1996 (HGCRA).

Establishing whether a person is likely to meet the HGCRA criteria for a Disabled Facilities Grant at this stage will prevent inappropriate applications being made and any delay in meeting the person's needs through other available means.

Note: This procedure **will not** tell you whether the person is eligible for a Disabled Facilities Grant. This decision will be made by the local Housing Authority within 6 months of any application being received.

2. The Legal Context of the Disabled Facilities Grant

The Disabled Facilities Grant (DFG) statutory requirements are set out under Section 19- 24 of the [Housing Grant, Construction and Regeneration Act 1996](#). The following is a short summary of the key aspects of Disabled Facilities Grants.

The DFG is a grant that is managed by the local Housing Authority. It sits outside of adult Care and Support.

The Disabled Facilities Grant is a mandatory grant. This means that it must be provided to a person requesting it when a particular set of criteria is met and circumstances apply.

When the applicant is an adult DFG's are subject to a means test, which includes an assessment of the applicant's resources, and the resources of any spouse, partner or any other family member living at the address to be adapted.

The maximum amount that the Housing Authority can award for a DFG is £30,000. Any means tested contribution is deducted from that amount, with the person expected to pay the difference towards the cost of the works required.

Example:

Joe requires adaptations to his home at a cost of £25,000. Following a means test Joe has been told that he must pay £5000 towards this amount himself. This means that the Housing Authority will contribute £20,000.

Applications for a DFG can be made by the disabled person (either directly or through a representative when they lack capacity) or by a landlord who is renting out a property to a disabled tenant.

Upon application the Housing Authority must decide whether the proposed adaptation is:

- a. Necessary and Appropriate (for which it relies on the recommendation and assessment of an Occupational Therapist); and
- b. Reasonable and practicable, based upon the type, age and condition of the building (for which it relies on a structural engineers report).

When an application has been approved any arrangements to carry out the adaptation are made between the Housing Authority and the person. The role of the Local Authority Occupational Therapist is:

- a. To ensure that interim equipment is in place as required whilst works are underway; and
- b. To review whether the adaptation is meeting the person's needs as intended.

3. Next Steps

3.1 When DFG eligibility is likely to be met

DFG eligibility is likely to be met when all of the following apply:

- a. The person has at least one need for an adaptation as set out in the HGCRA; and
- b. The adaptation proposed is necessary to meet the need; and
- c. The adaptation proposed is appropriate to meet the need.

You should explain to the person that:

- a. You have considered whether any DFG application that is made is likely to be approved on the basis of needs, necessity and appropriateness;
and
- b. Based on this you feel that an application should be made.

You should further explain that you are required to provide evidence to support the application, and that this will recommend that the adaptation is carried out.

People can have support to make an application for a DFG. This is normally provided by a Housing Information Advisor (HIA), although anyone who is able to support the person can do so. You should also consider the benefit of making independent advocacy available when:

- 1. The person lacks capacity to make an application; or
- 2. The person will have substantial difficulty making the application; and
- 3. There is no appropriate person to support them to make the application.

See: [Applying for a Disabled Facilities Grant](#).

3.2 When DFG eligibility is unlikely to be met

DFG eligibility is unlikely to be met if:

- a. The person has no needs for an adaptation as set out in the HGCRA; or

- b. The adaptation is not necessary to meet the person's needs; or
- c. The adaptation is not the most appropriate way of meeting the person's needs.

If any of these apply you should explain to the person that:

- a. You have considered whether any DFG application that is made is likely to be approved on the basis of needs, necessity and appropriateness; and
- b. Based on this you do not feel that an application should be made.

You should explore and agree what action is now required to ensure that the person's needs are met. This will likely be:

- a. A determination of eligibility under the Care Act (the person may have eligible needs under the Care Act even if they did not have eligible needs under the HGCRA); then
- b. An exploration of equipment or minor works that may be more appropriate to meet needs; or
- c. A request for another service to carry out further assessment and explore alternative options to meet eligible needs (for example a social work service).

See: [Understanding and Applying Eligibility Criteria](#).

3.3 If the person is not happy about your decision

If the person is not happy about your decision you should be open to reviewing the available evidence and your rationale to ensure that the decision you have made is robust. You should be open and transparent about the evidence sources you have used and take steps to try and support the person to understand the decision you have made.

Where ongoing disagreement persists you should:

- a. Seek the support and advice of your line manager as required;
- b. Make a record of any difference of opinion in formal records;

- c. Ensure the evidence upon which you have based your decision is robust;
- d. Make sure that the regard you have given to the views of the person (and others) and the impact on their Wellbeing is clear; and
- e. Make proportionate records of any conversations you have had to try and resolve the differences.

You must also make the person (or their representative) aware of their right to complain about the decision that has been made.

Ultimately the person can still make a DFG application, although it is unlikely that this will be agreed on the basis that you are not able to provide evidence that will support the application.

Last Updated: December 14, 2023

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